

**FORMAT OF UNDERTAKING TO BE SUBMITTED BY VENDOR
REGARDING CONFLICT OF INTEREST AMONG BIDDERS/ AGENTS AS
PER DPM 2025**

1. A Bidder shall not have conflict of interest with other bidders. Such conflict of interest can lead to anti-competitive practices to the detriment of Buyer's interests. The Bidder found to have conflict of interest shall be disqualified. A Bidder may be considered to have a conflict of interest with one or more parties in this bidding process, if :-

- (a) They have controlling partner(s) in common; or
- (b) They receive or have received any direct or indirect subsidy / financial stake from any of them; or
- (c) They have the same legal representative/agent for purposes of this Bid; or
- (d) They have relationship with each other, directly or through common third parties, that puts them in a position to have access to information about or influence on the Bid of another Bidder; or
- (e) Bidder participates in more than one Bid in this bidding process. Participation by a Bidder in more than one Bid will result in the disqualification of all bids in which the parties are involved. However, this does not limit the inclusion of components/sub assemblies/ assemblies from one bidding manufacturer in more than one bid.
- (f) In cases of agents quoting in offshore procurements, on behalf of their principal manufacturers, one agent cannot represent two manufacturers or quote on their behalf in a particular tender enquiry. One manufacturer can also authorise only one agent/dealer. There can be only one Bid from the following:- (i) The principal manufacturer directly or through one Indian agent on his behalf; and (ii) Indian/ foreign agent on behalf of only one principal
- (g) A Bidder or any of its affiliates participated as a consultant in the preparation of the design or technical specifications of the contract that is the subject of the Bid;
- (h) In case of a holding company having more than one independent manufacturing unit or more than one unit having common business ownership/ management, only one unit should quote. Similar restrictions would apply to closely related sister companies. Bidders must proactively declare such sister/ common business/ management units in same/ similar line of business

2. I/We certified that we have no conflict of interest as listed at para 1 with any other firms participating in this GeM bid No. _____. If it is found at any stage necessary action wrt disqualification / cancellation of SO or other action as deemed fit can be undertaken against our firm.

(Name and signature of vendor)

Date and place

Seal and Stamp